Mr Chairman: I was only trying to tell the honourable Member that he is saying that it is the Prime Minister and his colleagues who are trying to bring this amendment. That is not correct. It is Parliament that is now considering the amendment.

Dr S.P. Mookerjee: The reason why I was appealing to the Prime Minister especially was that I thought, my capacity being limited, if I could convince one individual, my objective could be attained. By appealing to the emotions of the Prime Minister I was appealing to all the Members of this House warning them that we are today being asked for the first time to amend our sacred Constitution. It is a great document. It is not a matter which you can take in a light-hearted way. We are anxious – no matter what our individual views may be on various matters – to retain the foundation of a good and solid Government which can work in the interest of all sections of the people of this country. That I certainly believe is the objective of all of us. Now, if we proceed in a light-hearted way to amend the Constitution, naturally we create a precedent which may lead to very serious consequences. These things, taken each one of them separately, may not mean much. But, after all, if you take them as a whole and the manner in which you are proceeding, you are doing a great disservice. If there is anything standing in your way you just come and amend the Constitution, utterly ignoring public opinion.

I would just like to refer the Prime Minister to the constitutions of England and of America. Here we have deliberately made our choice. We decided to have a written Constitution. We decided to have a Part on Fundamental Rights. Naturally when you have a Part on Fundamental Rights it obviously means that not the executive Government, not even Parliament, but the judiciary and the judiciary alone will be able to interpret and advise and decide whether the Constitution is working properly or not. That is how it is worked in different countries. As I was reading one of the judgments yesterday I came across significant remarks made by one of the Judges of America that the greatest constitutional issue in all American history was not settled by the court, not even in the halls of the Congress,